Thomas Aquinas, Reason, and Natural Law

Aquinas, Aristotle, and scholasticism

Thomas Aquinas was the greatest figure in the development of the medieval philosophy of Christianity called scholasticism. His philosophy, described as Thomism, is a synthesis of the Greco-Roman and Christian traditions. It was remarkably successful in incorporating newly recovered classical pagan learning into the traditions of Christianity established since the breakup of the Roman Empire. Aquinas was a priest, an Italian Dominican who taught at the University of Paris and at several centres in Italy. While the Catholic Church generally tried to dominate the political and social life of Western Europe, its success was uneven. The Church had political advances and political failures, but intellectually it dominated much of Western European culture, particularly during the Middle Ages. Aquinas is the most conspicuous and perhaps the greatest example of its success in synthesizing Athens and Jerusalem and making that synthesis an intellectual foundation for medieval culture. In many respects, he was an intellectual pathfinder rather than a revolutionary.

He was a pioneer. In the mid-13th century, when Aquinas is working, new texts, particularly texts of Aristotle, are being reincorporated and rediscovered in the Western tradition, and Aristotle is the most important figure for Aquinas. In some ways, people have said that Aquinas is in the process of “baptizing Aristotle”, and while that's an overstatement, there's a certain degree of truth in that. A much wider range of Aristotle’s works was being recovered in the Latin West, through translations from Arabic as well as directly from Greek. Arabic-speaking scholars had preserved and developed an important part of the classical tradition. These works were translated into Latin and brought into the universities. Aquinas was particularly important in reading Aristotle, interpreting him, and using him to develop and articulate a new, intellectually rigorous and sophisticated Christianity.

Why was this such an innovation? Christianity, since the time of Augustine, had been saturated in the Platonic tradition. Plato was the most important and influential philosopher for Augustine. From Augustine and the fall of the Roman Empire through roughly 1100 or 1200, the main connection between Christianity and Greece was the Platonic and Neoplatonic tradition, often transmitted indirectly, alongside the limited number of Plato’s own works available in Latin. This orthodoxy had become somewhat ossified in Catholic thinking before Aquinas.

Aquinas shifted the emphasis away from that Augustinian and Platonic tradition toward an Aristotelian one. First, it was more concerned with concrete things. Second, Aquinas was concerned with syllogistic logic. Logic and the syllogism are key ideas in scholastic thinking. The syllogism is the medium through which the scholastic thinker makes arguments and articulates views. It has a characteristic form dear to Aristotle, one of the greatest logicians and the thinker who worked out the theory of the syllogism and syllogistic reasoning.

Aquinas also borrowed from Aristotle a tendency toward system building and encyclopedism. Those familiar with his great works, the Summa contra Gentiles and the

Summa Theologiae, will find some of the most extraordinary and vast intellectual edifices imaginable. They go on seemingly for miles: volume after volume, question after question, covering every conceivable problem in morals, politics, theology, physics, and ethics. This encyclopedic tendency was congenial to Aquinas' mind, but it was also reinforced by Aristotle's earlier attempt at such an intellectual project. Bringing this tendency to Christianity helped make the Thomistic synthesis powerful and important.

Yet Aquinas' borrowings from the classical tradition should not be understood merely as "baptizing Aristotle." He was profoundly learned. He knew the classical tradition, at least those elements accessible through texts in the mid-thirteenth century. For example, he lacked access to most of Plato, but he did have access to Cicero, who would be important for his understanding of natural law. These classical elements are worth considering.

Questions, classical sources, and synthesis

From the Platonic tradition, I would say, Aquinas borrowed a surprising and easy-to-miss element in his thinking: the question-and-answer form. This is a comparison of intellectual styles rather than a claim that Aquinas copied Plato directly. If you have looked at the Summae or other scholastic works, you will find questions such as: "Does God exist?" or "Is God one or many?" Aquinas then presents several objections. In the process, he sets out alternative answers and refutes them. I sometimes find these alternatives rather like "straw men," although the objections often express serious positions in the tradition. After the objections, a contrary authority and his own response, he replies to the objections individually. At the end of this process, we arrive at what he regards as the true answer. After the answer to the first question, we move to the next. This is a question-and-answer format. The difference between Aquinas and Plato is that this question and answer format has been frozen.

It is petrified: fossilized Plato. The living quality of Plato, his open-endedness, playfulness, and living voice, has been taken out. Instead of living human beings asking and answering questions and involving themselves in the pursuit of truth, we have in Aquinas a disembodied form of questioning and a series of answers. At the end stands a very un-Platonic or un-Socratic final answer: the real answer. I would be inclined to say that, besides certain Augustinian elements, Aquinas borrows this question-and-answer format from the Platonic tradition. It is important and easy to overlook because his style is so far removed from Plato's careful dramatic irony. Another important classical borrowing is the Ciceronian idea of natural law.

In De Republica, Cicero talks about natural law as being a moral law, a normative law, accessible through the light of human reason, independent of any revelation, independent of any knowledge that is gained from scripture or from God's revealing of himself. Cicero thinks that this natural law, which is clearly a stoic idea, is a cosmopolitan set of normative rules accessible to all human beings as rational animals. And while Aquinas will not limit his conception of law to natural law, he'll add to it things like divine law and eternal law because he's a committed Christian, what he will do is incorporate this idea as a sort of substratum of his theory of law. And this will allow him to use the stoic intellectual tradition to good purpose. it's another way of Aquinas incorporating the classical tradition.

He is not merely the canonical interpreter of Aristotle, he is in fact a great synthetic mind in many respects analogous to Aristotle himself in the sense that he brings

together disparate elements of a varied intellectual tradition and forms them into one coherent whole. So Aquinas is a very eclectic borrower. He is very self-conscious in what he takes and he has an extraordinary mastery of the intellectual tradition accessible to him. insofar as mid-13th century intellectuals had access to the texts of the philosophers, Aquinas knew a remarkably broad range of them thoroughly.

In addition to borrowing and merging elements of the classical tradition, Aquinas thoroughly commands the tradition of Christian thinking. It begins with scripture, continues through the patristic doctors and early Church writers, particularly Augustine, and includes earlier Catholic writers such as Anselm with his ontological argument, Abelard, and various logicians contemporary or nearly contemporary with Aquinas himself. He brings together parts of two separate intellectual traditions, not simply forcing them together but finding a harmonious, felicitous way to braid them. The difficulty is that he is trying to square the circle.

Faith and reason ultimately do not mesh very nicely, and I confess to a certain suspicion of systems in which all the gears mesh precisely. One suspects that something is being overlooked, tendentiously misread, or perhaps unintentionally misread. When I read Aquinas, I come away feeling that something is being overlooked: it is a little too pat and works a little too well.

Nevertheless, this is an amazing intellectual tour de force. He brings Jerusalem and Athens together in an intellectually respectable way and adds a new, powerful intellectual note to Christianity. In my interpretation, the Catholic Church was in some respects harmed by his tremendous success because it tended to ossify the Church's intellectual outlook. Once people thought they had got it right, the achievement became a kind of poisoned fruit, making it difficult to accommodate new developments in modern natural science after Galileo.

Aquinas' achievement is therefore more synthetic than creative. He is not the inventive thinker who produces a completely new conception of the world. He is a scholastic thinker who spends much time absorbing and synthesizing a complex, not entirely coherent intellectual tradition into something that makes intellectual sense, insofar as he can round off its sharp edges.

Albert the Great and the religions of the book

Besides the classical authors, Aquinas was deeply indebted to his most important teacher, Albert the Great, now also a saint and doctor of the Church. Albert, a generation earlier, was among the first thinkers to try to incorporate Aristotle into Christianity. In my assessment, however, he did not achieve the comprehensive synthesis Aquinas later formulated. Albert gave Aquinas access to Aristotle and to a wide body of Christian learning. He was also interested in Islamic and Jewish learning, particularly Islamic and Jewish Aristotelianism. They were familiar with Maimonides and his Guide for the Perplexed, an attempt to navigate the intellectual minefield Greek rationalism presents to a religious believer. Another powerful influence was Averroes, a twelfth-century Muslim interpreter of Aristotle who tried to reconcile Islam, one of the religions of the book, with the Greek classical tradition.

In the twelfth and thirteenth centuries, around the time of Aquinas and before him, the great monotheisms, Islam, Judaism, and Christianity, were all reacting to the gradual rediscovery, the gradual reinfusion of Aristotle and that element in the classical tradition back into the religions of the book. And highly intellectual Jews like Maimonides, highly

intellectual Arabs or Muslims like Averroes are engaged in fundamentally the same project as Aquinas and the other great doctors of the church. They are trying to create an intellectually respectable version of monotheism which will not lose the attention and which will not diminish in intellectual stature compared with this new classical learning.

The rediscovery of classical learning

One might be tempted to say that in the 13th century we had a mini or premature or early version of the Renaissance. if you remember what the Renaissance is, it's a reinfusion of classical pagan learning, Greco-Roman learning, back into the Western tradition. May I suggest that this is not an event that happens in the mid-15th century in Italy, but rather it's a gradual process that happens in the centuries after the Crusades in which this information about the classical tradition gradually seeps back into the Western tradition. The reason why we don't, as a rule, note the 13th century as being a time of tremendous intellectual ferment is because the orthodox theology, and by implication the orthodox political system and the orthodox social structure, feudalism that's connected with it, is not endangered at least by this early infusion of classical learning. Because of that fact, we don't notice it. It isn't the same kind of explosive event in the history of the world.

We do not see an immediately explosive result when these two volatile traditions, Athens and Jerusalem, are mixed, partly because Aquinas finds a way of pulling the monster’s fangs. He is at least partly successful in having Aristotelian learning viewed as consistent with faith and revealed religion. It could easily have gone otherwise. In 1277, some propositions associated with Aristotelianism, including positions connected with Aquinas, were condemned. Parts of the Church hierarchy committed to an Augustinian-Platonic interpretation of Christianity saw Aristotle as a pagan and morally undermining influence.

Aquinas makes Aristotle appear intellectually friendly to Christianity, or at least somewhat consistent with it, through readings that are sometimes ingenious and, in my judgment, sometimes disingenuous. Consequently, there is no sharp discontinuity, but a merging of traditions that looks easy and effortless while being exceedingly difficult.

The later Renaissance did produce sharper tensions and changes. Yet classical texts did not suddenly arrive in fourteenth- or fifteenth-century Italy and immediately cause tremendous political, moral, and social cataclysms. The reintroduction of classical learning was a process rather than a single event.

One thing that makes this process seem seamless and smooth during the Middle Ages is the great genius of Thomas Aquinas. That is what is remarkable about him. I would not give him high marks for creativity, but as a synthetic intellect very few are in the same league. Aristotle himself is probably comparable.

Sacred knowledge, secular knowledge, and logic

Within scholasticism, this tradition of professional intellectuals working for the Church, we should remember that medieval intellectual life was largely dominated by the Church. It was the principal institutional centre of literacy, book culture, and higher learning, although its predominance was not an absolute monopoly. For that reason, medieval Western Europe had more similarities with other major religious traditions, such as Hinduism and Confucianism, than it would after the modern scientific revolution.

With modern science, intellectual life becomes secular and splits away from the sacred. A domain of profane knowledge develops alongside a separate domain of sacred knowledge, and Western Europe becomes something distinctive, sui generis. In this interpretation, it becomes a particular historical configuration.

During the high Middle Ages, by contrast, profane and sacred knowledge were regarded as consistent: if not perfectly overlapping, at least not fundamentally in conflict. Intellectual organization and orientation were combined with government administration and the legitimation of political life, much like the functions performed by Confucianism in China or Hinduism in India. This connection between sacred and secular is characteristic of many highly developed pre-industrial cultures and offers interesting, rewarding possibilities for comparative historical observation.

What is particularly interesting about scholasticism, viewed as a unified and distinct tendency, is its emphasis on logic. Here the classical tradition matters: Stoic logic and, especially, the Aristotelian syllogism. Aquinas is concerned with the structure of thought. Logic provides the foundation for the other sciences and makes the exercise of human reason and the project of natural knowledge possible. Through logic, Aquinas also attempts to mediate disputes. Like Aristotle, he is temperamentally inclined to split differences. It would be wrong to call him an intellectual compromiser. Rather, he invents useful new distinctions to reconcile apparently warring parties or disputes between people whom he thinks ought to agree.

For example, the Platonic tradition so important to early Christianity raises the problem of forms. Rephrased in scholastic logic, this is the problem of universals. Aquinas takes a position and tries to find a way through the labyrinth. It is worth considering, both as one of his contributions and, more importantly, as a way to gain a sense of what scholasticism is like.

Realism, nominalism, and the problem of universals

Scholasticism is generally accused of being a dry, logic-chopping, tedious, and unpleasant intellectual activity. I confess that I often find it dry, logic-chopping, and extremely dull. Occasionally there is a grand insight or a fine intellectual point buried beneath this mountain of words. Yet its reputation as an embalmed pursuit of knowledge, a dry and lifeless tendency, alas has a good deal of truth in it. After ten minutes of reading, you may close the book and look for an easier secondary commentary. Consider the arguments scholastics, or Christian logicians, have had about the nature of universals.

When we apply the word “paper” to this piece of paper or another, how do we apply a general term to a particular entity? When I see a collie, an Irish setter, and a bulldog, how do I decide to call them all “dogs”? Plato would have us believe that they all participate in the form of “dogness.” There is some form of the dog that allows us to attribute dogness to each instance. From an idealist perspective, this is attractive because it connects logic, the way we classify things, with ontology. There should be some correspondence between logic and grammar, the way we talk about things, and the things themselves. This Platonic doctrine, that a form or truly real universal exists outside space and time, is called realism in scholasticism.

It does not mean what realism commonly means today: representing the world as it appears to human beings. Scholastic realism says that general terms refer to a real entity, “real” in the Platonic sense, somehow outside space and time.

This sort of position is generally associated with the earlier Augustinian tradition in Christianity, and probably its most profound exponent is Saint Anselm. Anselm is the one who made the ontological argument: God is “that than which nothing greater can be conceived”, and he tries to make the argument that the idea of God itself is unavoidable and necessary and cannot logically be denied. That sort of a self-contained idealist thinking about theology, trying to bootstrap yourself right from thinking itself right into a positive theology is a typically Platonic-Christian idea. You can see the Platonic elements in it, in its kind of epistemological and ontological realism, and you can see this classical tradition being brought to the service of Christianity. Well, that's the one extreme in this problem of universals. The other extreme is developed over a period of generations, because it takes a long time to work out, but the other extreme in this problem of universals is called nominalism.

Nominalism holds that we call the collie, German shepherd, and Irish setter “dogs” because “dog” is the name for a set of things. It is a shorthand way of referring to things with the characteristics we associate with dogs: a contingent set of attributes assigned to all those things. This invites a comparison with Wittgenstein’s later discussions of general terms, without making the positions identical.

A great exponent of this approach to general names is William of Ockham. His thought would be important for later developments such as empiricism. Hobbes’ theory of language provides a useful later comparison, as does Hume’s empiricism. In that sense, aspects of Hume can be viewed as a secularized counterpart of this tendency, without assuming a simple direct line of influence.

This position has a strongly empirical tendency. Between the Scylla and Charybdis of realism and nominalism stands Thomas Aquinas. He does not exactly resolve the problem, because I am not convinced that there is a fully satisfactory resolution of this logical conundrum. Instead, he says in effect: “I will try to smooth the waters. I will adopt a position called moderate realism.” Those who have read the Nicomachean Ethics know that virtue is a mean between two vices. This is typically Aristotelian: split the difference. If that cannot be done satisfactorily, invent a new category or distinction that allows both sides to be partly right.

This is a microcosm of Aquinas’ whole career. So what he does is say, in effect: “I do not believe that there is a self-subsisting Platonic form of dogness in which all dogs participate. But I do not want a merely conventional name of a set, either.” What he says is that within the German Shepherd or the Bulldog or the Irish Setter, immanent within the specimen is the general species or is the general form of dogness. it's not somehow separate from the individual dogs we see, but when we refer to a set of dogs as being dogs, we're not just saying that they fall within that nominalistic set. Each dog has immanently within it that property which Plato wants to place in the realm of the forms or someplace like that.

This doesn't entirely resolve the problem. Convinced nominalists are not going to buy this solution. They are going to say: “It is a pseudo-solution.” And convinced realists are going to say: “You are conceding too much to the nominalists.” What's great about Aquinas is that he doesn't entirely satisfy anybody, but that a fair-minded person coming to him says: “That is a reasonable way of trying to solve this problem, since there is no obvious way out: give credit to both sides and synthesize them.” In some ways he reminds me of Hegel too, synthesizing two opposite positions into some third position, which takes what he understands to be best from the others.

Aquinas' approach to nominalism and realism is interesting, but it is a footnote to his philosophy. I raise it because it exemplifies his posture toward previous intellectual traditions. He is not an intellectual destroyer like Nietzsche or an intellectually creative thinker like Plato. He is systematic and encyclopedic, harmonizing the different parts of the orchestra. This was particularly important at that moment in Western history. Averroism and Aristotle's reintroduction into learned discourse meant Christianity had to confront them, whether it liked it or not.

I would now like to move from this example to his greatest works, the two Summae. They are vast, technical, rather dry, and encyclopedic. In some respects, they are so daunting that one hardly knows where to start.

The two Summae, faith, and reason

Rather than give a complete overview, I will discuss some main points and direct you to parts worth investigating, perhaps more relevant to the contemporary world than others. First comes the Summa contra Gentiles. The Latin gentiles relates to the nations or to non-Christians. This work is an extended defence of Christianity addressing non-Christian belief, one of the great apologies for Christianity, specifically Catholicism: an intellectual justification of Christian belief. In some respects, it resembles a medieval version of Justin Martyr's Apology, a second-century Christian work. Aquinas shows, in a highly intellectual way, that even if Christianity is not entirely necessitated by natural reason, it is at least never in conflict with it. No reasonably thinking non-Christian should be able to say with justice: "I cannot accept this because it conflicts with what the light of reason guides me toward."

Faith and reason are not identical. They do not overlap perfectly. They are like Venn diagrams that have a partial overlap. Some of the things that reason can tell you will also be affirmed by the knowledge that we get from theology. Some of the things that theology tells you will be confirmed by the knowledge we get from natural reason, philosophy. But they have two different domains and they do not address entirely the same issues.

So for example, in the view of Aquinas, it is possible for philosophy to demonstrate that God exists. He believes that God's existence can be demonstrated from effects in the world; these are not Anselm-style ontological proofs. But he doesn't believe that philosophy can show that God exists and is a trinity. If you want to believe that God is a trinity, then you have to go to scripture. That can only be gotten from theology. So there's an imperfect overlap between the two.

The Summa contra Gentiles engages with Arabic philosophy and its interpretations of Aristotle. The Islamic tradition was an important bearer of classical philosophy to the Latin Middle Ages. This tells us something worth noting about the intellectual climate. When studying the Middle Ages, we tend to concentrate almost exclusively on Christian and Catholic thought. I think that is a great error. We lose influences from outside the West, if one wishes to regard Spain as outside the West given the strength of its Islamic intellectual tradition. The Summa Theologiae is Aquinas' greatest achievement and a foundational philosophical and theological work of Catholicism. Let us consider some of its important contributions.

Introducing Aquinas' Summa is like taking you to the Great Barrier Reef. This is a vacation; we cannot make it our whole life here. I cannot take you through the entire book, page by page and question by question, or we would be here forever. The best I

can do is take you to parts that readers have appreciated and found interesting, worthwhile, or controversial, to give you a sampling of the whole. You can pursue it at your leisure, perhaps also at your peril, because finishing such a project takes considerable time. Nevertheless, some of its more influential elements are worth examining to understand how Aquinas' mind works and what his influence is like. First, he gives the famous five ways of demonstrating God's existence, on which almost everyone has commented.

Kant critically examined traditional arguments for God's existence. Philosophers have responded to these arguments in very different ways; many empiricists have been particularly unimpressed. Aquinas believes that his five ways are accessible to natural reason, independently of theology or scripture.

The five ways of demonstrating God's existence

The first three ways are commonly grouped as cosmological arguments; Kant later subjected cosmological reasoning to criticism. The first is the prime mover argument. Looking around the world, we notice that things move. Motion requires a mover. The question is: what ultimately accounts for motion? Think of the world as a series of moving dominoes, not literally composed of dominoes, but with relations of cause and effect like them. What ultimately accounts for their movement? The analogy is imperfect: Aquinas is concerned with dependence in a causal order, not simply with a first event in time. What ultimately accounts for motion must itself be unmoved. Aquinas identifies this unmoved mover with what people call God. In this simplified presentation, the reasoning is: "Things move; their motion requires an ultimate explanation; therefore there must be an unmoved mover." This expresses the force Aquinas attributes to the argument, rather than implying that anyone who rejects it denies motion's existence.

We have the prime mover argument. The next argument he makes is connected to that. It's the idea of efficient cause. We notice that everything in the physical world proceeds from an efficient cause. What's the first efficient cause? The first efficient cause will be God. So the argument from efficient cause will be his second way of proving that God exists.

The third way concerns possible and necessary beings. A later comparison can be made with Descartes and the contrast between contingency and necessity, although Aquinas' argument should not be reduced to a contrast between concepts. Things in the physical world, the world of space and time, are possible rather than necessary: they come into and go out of being and do not necessarily remain. The lecture's simplified presentation invokes a "principle of non-vacuous contrast": if contingent being is meaningful, must there not also be necessary being? Aquinas' actual argument concerns beings that arise and pass away, and the dependence of things whose necessity is caused on something necessary in itself. He concludes that there must be a being whose necessity comes from itself and which causes necessity in others. This, he says, is what people call God.

These are the first three proofs. The fourth proof is a departure from that. It's the proof of the ideas of perfection. To illustrate degrees of perfection, some mathematics homework is better than other homework, some pies are better than others, and some cars are better than others. Things have qualities, and one of the qualities is goodness, and some things are better than others. The idea of degrees of perfection, and this is an Augustinian Platonic idea, is taken to point to a highest perfection, understood as the cause of perfection in other things. if we have a kind of mathematical limit, well, we

know what the limit is even if we here in space and time never achieve that limit. That limit, that ultimate perfection, will be God. And the final argument that he makes is the telos of nature and the telos of humanity.

The final argument concerns the directedness of natural things toward ends. Such reasoning was important in philosophical theology long before Aquinas. Later, David Hume would sharply criticize arguments from design. As discussed in the presentation on Hume, he raises powerful objections to them. Aquinas' fifth way is not identical to every later argument from biological design. Nevertheless, Aquinas offers his five arguments as certain logical proofs, accessible purely to natural reason independently of faith and scripture. His conclusion can be paraphrased: "We have now addressed the question of whether God exists in more than one way."

Philosophy can tell us that God exists. After that, he is willing to wave the white flag. He does not have the Platonic or logical hubris that proclaims "logic über alles, philosophy über alles." Philosophy has a limited but autonomous domain: natural reason. Yet there are sacred truths inaccessible to natural reason, obtainable only through scripture. Theology therefore supplements philosophy, and philosophy is the handmaiden of theology.

In some ways, Aquinas is an intellectual circus performer: he brings in the intellectual elephants of the classical tradition and gets them to perform Christian tricks. It is amazing; one would not have thought elephants could do that.

He brings in Aristotle and shows him as, in a way, almost Christian. Similarly, Dante puts pagan philosophers in the first circle of Hell. They are not as badly placed as other pagans, yet do not make it into Heaven. This is a related intellectual tendency. Also connected with Aquinas' thinking in the Summa is the ontological doctrine called the great chain of being.

The great chain of being and political authority

This idea is important for the later development of hierarchical political theory and tells us much about Western political thought. The great chain of being holds that God constructed the world in a completely hierarchical way. God is at the top: the unmoved mover, cause of the universe, and final cause of the world. Below him are the various orders of angels, incorporeal beings possessing intellect and qualities that make them superior to humans but lesser than God. Below the angels are human beings. This is still a pre-modern scientific outlook, in which humans have a special creation and a particular rank. Below them are the other animals and plants. The order is therefore God, angels, humans, and the remaining living beings.

There are also gradations within humanity. In the political hierarchy described here, the lawful monarch stands at the top. For Aquinas, a government's legitimacy depends on consistency with natural law and divine ordinance. A legitimate ruler thus rules by God's grace and dispensation. Such ideas could later be turned into the divine right of kings and a defence of absolutism, in Catholic and Protestant settings alike. Historical connections exist, although Aquinas' position cannot be equated with later absolutism.

Legitimizing government through theological notions may create a dangerous tendency that leaves little room for later flexibility. The great chain of being organizes reality into a hierarchy: everyone knows their position and is supposed to have been placed there for

a good reason. A feudal society's legitimation through this idea reflects its static qualities.

A hierarchical society can justify itself through an argument like this: "God made the king a king, and that is why he should tell you what to do. If you are a serf, you should do what you are told because God placed you in that position for a reason. He did not make you a rock or a king, so you should not rock the political boat." This is an illustration of a conservative use of hierarchy, not a quotation from Aquinas. The same justification might continue: "If the king is wicked, God will take care of that. It is not your place to judge. Perform your function, stay within your sphere, and things will work out."

Aquinas' own account is more qualified: unjust commands do not automatically bind subjects, and laws contrary to divine law must not be obeyed. The great chain of being can thus support an extremely conservative, backward-looking outlook. The connection of theology and politics, extending from the Middle Ages to the divine-right arguments associated with James I in England, has one of its classical expressions in this hierarchical picture. James I was a Protestant king, however, and Aquinas should not simply be classified as a theorist of Catholic absolutism. Political conclusions can flow from this ontology, but not all later conclusions are his own.

Aquinas follows Aristotle. In many ways, we are connecting Aristotle's Politics with Augustine's City of God. Aquinas prefers a mixed polity, like the kind Aristotle approves in the Politics, and favours a monarchical element as a particularly satisfactory way of arranging society. Yet the king governs only through God's grace, and his ordinances or positive laws are judged by their consistency with God's laws. Human law contrary to divine law must not be obeyed. Laws contrary to the common good may lack binding force in conscience, although Aquinas allows qualifications where resistance would cause scandal or disturbance.

Eternal law, natural law, human law, and divine law

Aquinas' contributions to legal theory deserve a brief discussion. He distinguishes four kinds of law. The first is eternal law, the idea of God's providence. Unless one is an Epicurean, it is difficult to believe in God while thinking him so remote from the world that he has no providence for the universe and there is no design, idea, or telos behind it. Aquinas says belief in God involves an affirmation of eternal law.

The second kind is natural law, an idea connected with Cicero. It consists of normative rules accessible simply through natural reason. For example: "It is evil to kill your parents." One need not consult scripture to recognize this. Anyone investigating the human condition can recognize such a normative rule.

Natural law is the part of God's moral rules accessible without scripture. There is also human law, the practical, positive law of a particular society, what the Greeks called nomos. Finally, divine law is obtained directly through revelation. It too belongs to eternal law, but is specifically derived from scripture. These are the four kinds of law.

What matters here is natural law's tremendous influence on Western culture. It is not original to Aquinas; to be honest, I regard almost nothing in him as entirely original. Yet he synthesizes this Stoic tradition with Christian thought and makes it highly influential in Catholic thinking. In my view, its results have largely been good. Natural-law theory is alive and well.

Conscience, civil disobedience, and Nuremberg

As we conclude, let us try a few examples. One could say that Aquinas “baptizes” Cicero at the same time as Aristotle. Natural law can provide a foundation for conscientious objection during war. Imagine the government tells you to report to the draft board. You say: “No, I am not going to do that.” Before the judge, you are asked: “Why have you not reported to the draft board?” You answer: “Because the draft law is wrong.” The judge asks: “How did you arrive at that conclusion?” You might answer: “I think it violates universal moral obligations governing how people should behave.” In religious language, this becomes an appeal to God’s ordinances. Think of civil disobedience associated with Gandhi and Martin Luther King. Why break the law? The answer may be: “Because a higher moral obligation tells us not to follow this law.”

This can be seen as a way of evading civic obligations. On the other hand, eliminating natural law and an individual right to conscience poses a real danger.

If we give up the ability to judge positive civic law by universal moral obligations accessible to all rational people, we risk a complete obligation to obey the state. In my critical reading, this danger can be associated with certain strands of German idealism and their elevation of the state, although Kant and Hegel should not simply be equated with unconditional state domination. There is at least as much danger here as in the anarchic tendency to judge and reject the laws of one’s own society.

Natural-law arguments remain alive, and I am not sure we would want to dispense with them. A striking example is the Nuremberg trials at the end of the Second World War. We put the Nazis on trial, and we found some of them guilty, in other cases acquitted, of various kinds of crimes. There is a difficulty here: by what law should defendants be judged if their conduct was permitted by their own state? One can ask: “What is the point of a court and a trial if there is no law? If there is a law, where is it written down?”

Historically, the Nuremberg trials did have a written legal basis in the Tribunal’s Charter and drew on international law, including the laws of war. They did not rest solely on an unwritten natural law.

The philosophical question remains, however: how can law express obligations that reach beyond a particular state’s statutes? The lecture interprets this as pointing toward natural law, or toward a general moral judgment about acceptable human behaviour.

Atrocities are bad, whether there's a law in your statutes that says it's bad or not. Here we face a moral dilemma. Many people have reservations about this idea of natural law. Some people find it implausible that normative rules can be derived simply through natural reason. But if we reject every moral or legal standard beyond a state’s own enactments, what do we want to do? Admit that politics is only a question of power, and punish the defeated without a trial? A trial presupposes an applicable legal standard, which need not be confined to the domestic code of the defendants’ country. That standard can be international law. The wider moral question helps explain why, in my view, natural-law arguments are here to stay.

They are not likely to disappear anytime soon. And they serve, oddly enough, because I don't think Aquinas intended them this way, as a sort of bulwark of freedom of the individual and freedom of individual conscience, which I think is very non-scholastic or contra-scholastic. It turns out that this doctrine, which is incorporated into Aquinas' theory of law, has a tremendously complex and unexpectedly liberating career in the subsequent history of Western philosophy.

For this alone, Aquinas would have been the great contributor to legal theory. But in addition to this contribution to legal theory, what he does in the Summa is encyclopedically inquire into theology and ontology and metaphysics and ethics, and brings them together in a synthesis which is profound if not original, and influential if not entirely accessible to us. Aquinas' work, although formidable and intimidating, is worth reading.

Aquinas' legacy and a starting point for reading

A little reading on your own is worthwhile, especially if you can find access to selected parts. The treatise on law is in the First Part of the Second Part of the Summa, questions 90 through 108. Questions 90 through 97 are an especially useful starting point. For reading alongside these lectures, I would recommend this relatively short section first. It offers some of the Summa's most influential topics and those themes most relevant to contemporary philosophical concerns.